PARTNERSHIP AGREEMENT

BETWEEN:

TON INFRASTRUCTURE LTD, a company organized under the laws of Alberta, Canada (hereinafter referred to as "TON")

AND

NRG BLOOM INC, a company organized under the laws of Quebec, Canada (hereinafter referred to as "NRG BLOOM")

(TON and NRG BLOOM are collectively referred to as the "Parties" and individually as a "Party")

EFFECTIVE DATE: March 14, 2025

RECITALS:

WHEREAS, TON is engaged in the business of bitcoin mining infrastructure development and operations;

WHEREAS, NRG BLOOM has established community relationships in Nigeria and expertise in site development and local operations;

WHEREAS, the Parties wish to collaborate in the development and operation of bitcoin mining facilities in Nigeria, specifically at the Ogboinbiri site (5MW) and Obrikom site (10MW);

WHEREAS, this Agreement sets forth the terms and conditions of the Parties' agreement for implementing the strategic partnership;

NOW, THEREFORE, in consideration of the mutual covenants and agreements hereinafter set forth, the Parties agree as follows:

ARTICLE 1: DEFINITIONS

1.1 **"Agreement"** means this Partnership Agreement and all schedules and exhibits attached hereto.

1.2 **"Bitcoin Miners"** means the specialized equipment used for mining bitcoin.

1.3 **"Effective Date"** means the date first written above.

1.4 **"Infraflow Container"** means the modular container designed for bitcoin mining operations designed and provided by TON.

1.5 **"Management Fee"** means the compensation paid to NRG BLOOM for operational management services.

1.6 **"Phase 1"** means the initial deployment at the Ogboinbiri site of one Infraflow container with 360 miners.

1.7 **"Phase 2"** means the subsequent deployment at the Ogboinbiri site of three additional Infraflow containers with 1,080 miners.

1.8 **"Site 1"** means the Ogboinbiri Community location for bitcoin mining operations.

1.9 **"Site 2"** means the Obrikom Community location for bitcoin mining operations.

ARTICLE 2: PURPOSE AND SCOPE

2.1 The purpose of this Agreement is to establish a strategic partnership between TON and NRG BLOOM for the development and operation of bitcoin mining infrastructure in Nigeria.

2.2 The partnership shall follow a phased approach designed to ensure risk mitigation, proof of concept validation, and trust-building between all stakeholders.

2.3 The scope of the partnership includes the development and operation of:

a) Site 1: Ogboinbiri (5MW capacity)
b) Site 2: Obrikom Community (10MW capacity)

ARTICLE 3: TERM

3.1 This Agreement shall commence on the Effective Date and shall continue for an initial term of five (5) years, unless earlier terminated in accordance with the provisions of Article 11.

3.2 The Parties may extend the term of this Agreement by mutual written agreement.

ARTICLE 4: ROLES AND RESPONSIBILITIES

4.1 **TON's Responsibilities:**

a) Provision of capital investment for both sites as outlined in details of this agreement
b) Supply of Infraflow containers, mining equipment, and infrastructure
c) Responsibility for equipment shipping and customs clearance
d) Technical expertise in deployment and operations

e) Ongoing operational oversight, training, and processes
f) 3D site drawings and technical planning
g) Financial management and reporting

4.2 **NRG BLOOM's Responsibilities:**

a) Established community relationships in Nigeria
b) Site identification and access
c) Local regulatory knowledge
d) Community liaison services
e) Local operational support and site management
f) On-site operations staffing
g) Logistics coordination from port to site

ARTICLE 5: IMPLEMENTATION PLAN - SITE 1 (OGBOINBIRI)

5.1 **Phase 1: Initial Deployment**

a) TON shall supply and deliver:
    i. 1 Infraflow container
    ii. 360 Bitcoin Miners
    iii. Transformer
    iv. All necessary cabling and electrical components
b) TON shall cover all shipping, customs fees, and development costs
c) Shipping date: Mid-March 2025
d) Estimated arrival at Lagos port: End of April 2025
e) Estimated arrival on site: Mid-May 2025 (after 2 weeks customs clearance)
f) Target operational date: End of May 2025 (approx. 1 week after site delivery)
g) Initial profit sharing: 50/50 split between TON and NRG BLOOM
h) NRG BLOOM shall provide the existing power agreement, including signed PPA or agreement with community/Nelson

5.2 **Phase 2: Full-Scale Deployment**

a) After 30 days of successful Phase 1 online operations, TON shall procure:
    i. 3 additional Infraflow containers
    ii. 1,080 additional miners (360 per container)
    iii. Transformers and all necessary electrical infrastructure
b) TON shall cover all associated costs to bring these containers online
c) Upon completion of Phase 2 deployment and the additional 3 containers being operational:
    i. TON shall own and operate 3 containers with associated miners
    ii. NRG BLOOM shall take full ownership and operate the 360 miners from Phase 1

ARTICLE 6: IMPLEMENTATION PLAN - SITE 2 (OBRIKOM)

6.1 **Phase 1: Site Securing & Preparation**

a) TON shall provide capital for securing initial 3MW:
   i. Groundbreaking fee: $3,000
   ii. Annual lease payment: $5,000
b) Target funding date: April 2025
c) NRG BLOOM shall provide site location details by March 14, 2025, including:
   i. GPS coordinates
   ii. Available land specifications
   iii. Distance to power plant
   iv. Distribution line path for optimal setup for 10MW
   v. Photos of site
d) Power negotiations will be conducted directly between TON and Nelson

6.2 **Phase 2: Equipment Deployment & Preparation**

a) Equipment procurement to begin after 1 month of successful operation of Ogboinbiri Phase 2
b) Site construction costs: $5,000 USD (estimated)
c) Site electrical costs: $10,000 USD (estimated)
d) TON shall supply and deliver:
   i. 3 Infraflow containers
   ii. 1,080 miners (3 containers worth)
   iii. Transformers and necessary electrical infrastructure
e) Estimated shipping timeline: 45 days to Lagos port after manufacturing
f) Estimated arrival on site: 2 weeks after port arrival
g) Estimated setup time: 1-2 weeks post-arrival

6.3 **Phase 3: Expansion**

a) Total site capacity: 10MW
b) After successful operation of initial 3MW (timeline TBD):
   i. Final power allocation/sharing structure for 10MW to be determined between TON and NRG BLOOM through a written amendment to this Agreement

ARTICLE 7: FINANCIAL TERMS

7.1 **Capital Investment**

a) TON shall provide capital investment for the sites as outlined in this agreement
b) Total estimated investment: $4,150,000 USD

7.2 **Power Cost Structure**

a) Operational power costs to be finalized through negotiations with Nelson

7.3 **Profit Sharing**

a) Site 1, Phase 1: 50/50 split between TON and NRG BLOOM
b) Site 1, Phase 2: TON retains 100% of profits from 3 containers; NRG BLOOM retains 100% of profits from the original container
c) Site 2: Phase 2: TON retains 100% of profits from 3 containers
d) Site 2: Phase 3: Power allotment structure to be determined for the full 10MW development by written mutually agreed amendment to this agreement

7.4 **Management Fee**

a) NRG BLOOM shall receive a management fee for site operations
b) The structure and amount of the management fee shall be detailed in Schedule A (to be developed by March 31, 2025)

ARTICLE 8: OPERATIONAL STRUCTURE

8.1 NRG BLOOM employees shall operate the sites with specific roles and responsibilities as defined in Schedule B (to be developed by March 31, 2025).

8.2 TON's operational standards and protocols shall be implemented and followed at all sites.

8.3 TON shall provide on-site training to NRG BLOOM's technical team.

8.4 The Parties shall establish joint operational protocols and communication channels.

ARTICLE 9: OWNERSHIP OF EQUIPMENT

9.1 **Site 1:**

a) TON shall own all equipment during Phase 1
b) After successful completion of Phase 2, TON shall transfer ownership of the original container and 360 miners to NRG BLOOM

c) TON shall retain ownership of the three additional containers, associated 1,080 miners and equipment during and after successful completion of Phase 2

9.2 **Site 2:**

a) TON shall own all equipment during Phase 1 and 2
b) Ownership allocation shall be determined for the remaining 7MW, as part of the final 10MW development agreement

9.3 All transfers of ownership shall be documented in writing and signed by both Parties.

ARTICLE 10: INTELLECTUAL PROPERTY

10.1 Each Party shall retain all rights, title, and interest in and to its own intellectual property.

10.2 Neither Party shall use the other Party's trademarks, trade names, or logos without the prior written consent of the other Party.

10.3 Any intellectual property developed jointly by the Parties during the term of this Agreement shall be owned jointly by the Parties, unless otherwise agreed in writing.

ARTICLE 11: TERMINATION

11.1 **Termination for Cause:**

a) Either Party may terminate this Agreement for cause upon thirty (30) days written notice to the other Party of a material breach of this Agreement if such breach remains uncured at the expiration of such period.

11.2 **Termination for Convenience:**

a) After the completion of Site 1, Phase 2, either Party may terminate this Agreement for convenience upon ninety (90) days written notice to the other Party.

11.3 **Effect of Termination:**

a) Upon termination, the Parties shall work together in good faith to ensure an orderly transition of operations
b) All financial obligations accrued prior to termination shall remain in effect
c) Ownership of equipment shall be determined according to the phase of implementation at the time of termination

ARTICLE 12: DISPUTE RESOLUTION

12.1 The Parties shall attempt in good faith to resolve any dispute arising out of or relating to this Agreement promptly by negotiation between executives who have authority to settle the dispute.

12.2 If negotiation does not resolve the dispute within thirty (30) days, the Parties agree to submit the dispute to mediation.

12.3 If mediation does not resolve the dispute within sixty (60) days, either Party may initiate legal proceedings in accordance with Article 15.3.

ARTICLE 13: CONFIDENTIALITY

13.1 Each Party acknowledges that in connection with this Agreement it may receive certain confidential or proprietary information from the other Party.

13.2 Each Party shall maintain the confidentiality of all such information and shall not disclose such information to any third party without the prior written consent of the disclosing Party.

13.3 This confidentiality obligation shall survive the termination of this Agreement for a period of three (3) years.

ARTICLE 14: FORCE MAJEURE

14.1 Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement due to causes beyond its reasonable control, including but not limited to acts of God, war, terrorism, riots, embargoes, acts of civil or military authorities, fire, floods, accidents, strikes, or shortages of transportation facilities, fuel, energy, labor, or materials.

ARTICLE 15: GENERAL PROVISIONS

15.1 **Entire Agreement:** This Agreement, including all schedules and exhibits, constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior agreements and understandings, whether written or oral.

15.2 **Amendments:** No amendment to this Agreement shall be effective unless it is in writing and signed by both Parties.

15.3 **Governing Law:** This Agreement shall be governed by and construed in accordance with the laws of Alberta, Canada without regard to its conflict of laws principles.

15.4 **Assignment:** Neither Party may assign this Agreement, in whole or in part, without the prior written consent of the other Party.

15.5 **Notices:** All notices required or permitted under this Agreement shall be in writing and shall be deemed effective upon personal delivery, upon confirmation of receipt of facsimile transmission, or upon receipt when sent by registered or certified mail, return receipt requested, postage prepaid, addressed to the Party at the address shown below or at such other address as the Party may designate by notice:

To TON:
Marley Broda
600 – 12220 Stony Plain Road
Edmonton, AB T5N 3Y4
marley@ton-infra.com

To NRG BLOOM:
Makir Volcy
271-4388 Saint-Denis Street
Suite 200
Montréal QC H2J 2L1
makir@nrgbloom.com

15.6 **Severability:** If any provision of this Agreement is held to be invalid or unenforceable, such provision shall be struck and the remaining provisions shall be enforced.

15.7 **Counterparts:** This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

ARTICLE 16: SCHEDULES AND EXHIBITS

16.1 The following schedules and exhibits form an integral part of this Agreement:

a) Schedule A: Management Fee Structure (to be developed by March 31, 2025)
b) Schedule B: Operational Roles and Responsibilities (to be developed by March 31, 2025)
c) Schedule C: Risk Management Plan

Signatures Follow on the Next Page

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

TON INFRASTRUCTURE LTD

By: _____
Name: [Name] Title: [Title] Date: [Date]

NRG BLOOM INC

By: _____
Name: [Name] Title: [Title] Date: [Date]

SCHEDULE C: RISK MANAGEMENT PLAN

Operational Risks

- **Equipment failure or damage during transit**
  - *Mitigation:* Comprehensive shipping insurance, phased deployment approach
- **Power supply fluctuations**
  - *Mitigation:* Proper transformer implementation and electrical infrastructure
- **Local regulatory changes**
  - *Mitigation:* NRG BLOOM's ongoing community relationships, compliance reserve

Financial Risks

- **Bitcoin price volatility**
  - *Mitigation:* Power cost structure tied to hash rate rather than fixed fiat amounts
- **Exchange rate fluctuations**
  - *Mitigation:* Strategic timing of capital deployments, currency hedging as appropriate
- **Return on investment timing**
  - *Mitigation:* Phased implementation to validate assumptions before full capital commitment

Partnership Risks

- **Communication challenges**
  - *Mitigation:* Clear reporting structures, regular status meetings, defined escalation paths
- **Stakeholder alignment**
  - *Mitigation:* 50/50 initial profit sharing on container 1, clear ownership transitions, documented expectations
- **Community relations**
  - *Mitigation:* Direct community benefit through power cost structure, local employment opportunities